

PETITION FOR EXPUNGEMENT
FILED IN A CIRCUIT COURT –
ACQUITTAL/DISMISSAL

Commonwealth of Virginia VA. CODE § 19.2-392.2(A)

Case No. _____

_____ Circuit Court
CITY OR COUNTY

_____ STREET ADDRESS OF COURT

_____ v. Commonwealth of Virginia
NAME OF PETITIONER

1. This petition to expunge the police and court records, including electronic records, relating to the charge(s) detailed in Part 2 (below) is based on § 19.2-392.2(A), as the petitioner was charged with the commission of a crime or offense AND (CHECK ONE)
- ☐ has been acquitted of the charge.
- ☐ a nolle prosequi of the charge has been taken or the charge has been otherwise dismissed, including dismissal by accord and satisfaction pursuant to Virginia Code § 19.2-151 or an original charge that was reduced or a charge that is dismissed after a plea or stipulation of the facts that would justify a finding of guilt pursuant to § 19.2-298.02.

2. I further state that:
- Petitioner’s date of birth is: _____
- Petitioner’s full name at the time of arrest: _____
- Specific charge(s) to be expunged: _____
- If matter was heard on appeal from General District Court, list applicable General District Court case number(s): _____

- ☐ A copy of the warrant or indictment is attached to this petition. Underlying Case No.(s) _____
- Date of arrest: _____ Name of arresting agency: _____
- ☐ A copy of the warrant or indictment ☐ date of arrest or name of arresting agency is not reasonably available because (state reason this information is not available): _____

Date(s) of final disposition of charge(s): _____ Court disposing of charge(s): _____

The continued existence and possible dissemination of information relating to the arrest of the petitioner causes or may cause circumstances which constitute a manifest injustice to the petitioner. For this reason, I request that the police and court records, including electronic records, relating to the charge(s) be expunged and that a copy of any order of expungement be forwarded to the Department of State Police pursuant to § 19.2-392.2(K).

_____ DATE SIGNATURE OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

_____ PRINT NAME

_____ ADDRESS OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

_____ TELEPHONE NUMBER OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

_____ EMAIL ADDRESS OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

_____ VSB NUMBER OF ATTORNEY FOR PETITIONER (IF APPLICABLE)

☐ I certify that I provided the petitioner a certified copy of this petition. Hearing date and time: _____

_____ DATE _____ CLERK

PETITION FOR EXPUNGEMENT
FILED IN A CIRCUIT COURT –
ACQUITTAL/DISMISSAL

Commonwealth of Virginia VA. CODE § 19.2-392.2(A)

Case No. 24-CR-001234

Springfield Circuit Court
CITY OR COUNTY

_____ STREET ADDRESS OF COURT

_____ v. Commonwealth of Virginia
NAME OF PETITIONER

1. This petition to expunge the police and court records, including electronic records, relating to the charge(s) detailed in Part 2 (below) is based on § 19.2-392.2(A), as the petitioner was charged with the commission of a crime or offense AND (CHECK ONE)
- ☐ has been acquitted of the charge.
- ☐ a nolle prosequi of the charge has been taken or the charge has been otherwise dismissed, including dismissal by accord and satisfaction pursuant to Virginia Code § 19.2-151 or an original charge that was reduced or a charge that is dismissed after a plea or stipulation of the facts that would justify a finding of guilt pursuant to § 19.2-298.02.

2. I further state that:
- Petitioner’s date of birth is: 1991-04-17
- Petitioner’s full name at the time of arrest: Jordan Avery Reyes
- Specific charge(s) to be expunged: Possession of a controlled substance
- If matter was heard on appeal from General District Court, list applicable General District Court case number(s): 24-CR-001234

- ☐ A copy of the warrant or indictment is attached to this petition. Underlying Case No.(s) 24-CR-001234
- Date of arrest: 2019-03-08 Name of arresting agency: _____
- ☐ A copy of the warrant or indictment ☐ date of arrest or name of arresting agency is not reasonably available because (state reason this information is not available): _____

Date(s) of final disposition of charge(s): _____ Court disposing of charge(s): _____

The continued existence and possible dissemination of information relating to the arrest of the petitioner causes or may cause circumstances which constitute a manifest injustice to the petitioner. For this reason, I request that the police and court records, including electronic records, relating to the charge(s) be expunged and that a copy of any order of expungement be forwarded to the Department of State Police pursuant to § 19.2-392.2(K).

_____ DATE SIGNATURE OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

Jordan Avery Reyes PRINT NAME

118 Maple Street ADDRESS OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

555-0142 TELEPHONE NUMBER OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

jordan.reyes@example.com EMAIL ADDRESS OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

_____ VSB NUMBER OF ATTORNEY FOR PETITIONER (IF APPLICABLE)

☐ I certify that I provided the petitioner a certified copy of this petition. Hearing date and time: _____

_____ DATE _____ CLERK

Checklist for petitioner:

- ☐ File completed PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL in the circuit court of the county or city in which the charge(s) was disposed of and, if required by the clerk of the court, a completed COVER SHEET FOR FILING CIVIL ACTIONS, circuit court form CC-1416.
- ☐ Request that the Central Criminal Records Exchange electronically forward a copy of your Virginia criminal history record to the circuit court where the petition for expungement was filed.
- ☐ Have a copy of this petition served on the Commonwealth’s Attorney in the county or city in which the PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL is filed.

Checklist for petitioner:

- ☒ File completed PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL in the circuit court of the county or city in which the charge(s) was disposed of and, if required by the clerk of the court, a completed COVER SHEET FOR FILING CIVIL ACTIONS, circuit court form CC-1416.
- ☒ Request that the Central Criminal Records Exchange electronically forward a copy of your Virginia criminal history record to the circuit court where the petition for expungement was filed.
- ☒ Have a copy of this petition served on the Commonwealth’s Attorney in the county or city in which the PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL is filed.